

RESOLUTION ON THE EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 6, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate ex officio preliminary investigation proceedings against the Social Security IT Management and the National Institute of Social Security, in order to analyze the implications, in terms of personal data protection, of the cloud services of the Minimum Vital Income (IMV), particularly regarding the use of artificial intelligence techniques.

SECOND: According to the information received by this Agency, it was learned that the Social Security IT Management (GISS) had implemented the contracting of cloud services for the IMV, consisting of professional services for the development, deployment, and maintenance of applications that are part of the current telematic information system for the application, registration, and communication of the IMV benefit, its web simulator, and the virtual assistant, the infrastructure, platforms, and software services on which the aforementioned developments and applications run, following a multi-cloud model (MultiCloud) and the professional services for the administration and maintenance of the previous infrastructures, platforms, and software of the cloud providers.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD establishes the following regarding preliminary investigation actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the proceedings. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Proceedings

In relation to the preliminary actions, the Regulation for the Development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 provides that "The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, after more than twelve months counted from the date of admission for processing of the complaint, no agreement to initiate sanctioning proceedings has been issued and notified.

In the present case, the computation of the twelve-month maximum duration of the preliminary actions began on February 6, 2023, so they must be declared expired.

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IV

Initiation of New Investigative Actions

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

"The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained unchanged had the expiration not occurred may be incorporated into this. In any case, the new procedure must complete the procedures for allegations, proposal of evidence, and hearing of the interested party."

In this regard, the Audiencia Nacional, in its ruling of July 10, 2013 (JUR 2013\259250), considers that "the declaration of expiration of the prior investigative actions initiated by the Spanish Agency for Data Protection does not pose any obstacle for said entity to initiate or restart other prior investigative actions regarding the same facts, as long as the prescription period for the administrative infraction under investigation has not elapsed."

In the present actions, the investigation has proven to be a process of enormous complexity both from a technical standpoint and due to the volume of documentation that must be analyzed and studied. Furthermore, new lines of investigation have emerged that need to be evaluated, thus, the initiated investigation must be completed with new complementary actions.

Consequently, given that the facts under investigation are not prescribed, instructions are given to the General Sub-Directorate of Data Inspection to initiate new investigative actions.

Therefore, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present prior investigative actions.

SECOND: TO OPEN new investigative actions and incorporate into these new actions the documentation that comprises the prior actions declared expired by this act.

THIRD: TO NOTIFY this Resolution to the MANAGEMENT OF INFORMATION TECHNOLOGY OF SOCIAL SECURITY and to the NATIONAL INSTITUTE OF SOCIAL SECURITY.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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